

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabe-D excess burden	Gross outcome error	Total expenditures
American	0.243	0.131	0.015	0.201	0.260
Trial Fee-Shifting	0.237	0.121	0.021	0.201	0.240
Complete Fee-Shifting	0.260	0.127	0.115	0.219	0.361

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liabe-D excess burden	Gross outcome error	Total expenditures
American	0.240	0.111	0.006	0.204	0.208
Trial Fee-Shifting	0.230	0.167	0.008	0.217	0.276
Complete Fee-Shifting	0.312	0.088	0.072	0.249	0.302